

**ELIZABETH II**



**1970 CHAPTER xix**

An Act to confirm a Provisional Order under the Private  
Legislation Procedure (Scotland) Act, 1936, relating to  
British Transport Docks. [29th May 1970]

**W**HEREAS the Provisional Order set forth in the schedule  
hereunto annexed has been made by the Secretary of  
State under the provisions of the Private Legislation  
Procedure (Scotland) Act, 1936, and it is requisite that the said 1936 c. 52.  
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,  
by and with the advice and consent of the Lords Spiritual and  
Temporal, and Commons, in this present Parliament assembled,  
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto  
annexed is hereby confirmed.

Confirmation  
of Order in  
schedule.

2. This Act may be cited as the British Transport Docks Order Short title.  
Confirmation Act 1970.



## SCHEDULE

### BRITISH TRANSPORT DOCKS

*Provisional Order to transfer certain statutory obligations and liabilities of the British Transport Docks Board in relation to Tayport harbour to James Donaldson and Sons Limited.*

1962 c. 46.

Whereas by the Transport Act 1962 the British Transport Docks Board (hereinafter referred to as "the Board") were established:

And whereas by the said Act the property, rights and liabilities of the British Transport Commission in Tayport harbour were vested in the Board:

And whereas by a disposition dated the 14th September 1966 the Board sold Tayport harbour to James Donaldson & Sons Limited (hereinafter referred to as "the Company"):

And whereas it is expedient that the Board should be relieved of certain statutory obligations and liabilities attaching to them in respect of the said harbour and that those obligations and liabilities should be transferred to the Company:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act, the Secretary of State orders as follows:—

Short title.

1. This Order may be cited as the British Transport Docks Order 1970.

Interpretation.

2. In this Order—

1847 c. 27.

"the Act of 1847" means the Harbours Docks and Piers Clauses Act 1847;

1851 c. lv.

"the Act of 1851" means the Edinburgh, Perth and Dundee Railway (Consolidation) Act 1851;

"the Board" means the British Transport Docks Board;

"the Company" means James Donaldson & Sons Limited;

"the harbour" means Tayport harbour vested in the Board by the Transport Act 1962.

Transfer of application of certain statutory provisions from Board to Company.

3.—(a) Section LXXVII (which makes provision for laying down buoys) and section LXXVIII (which makes provision in regard to lights, beacons and seamarks) of the Act of 1847 in their application to the harbour pursuant to the provisions of section IV (Certain Provisions of 10 & 11 Vict. c. 27 incorporated with this Act) of the Act of 1851 shall cease to apply to the Board and the expression "the Undertakers" in the said sections shall mean the Company.



(b) Section LXIII (Works abandoned across tidal Waters may be removed by the Admiralty, at expense of the Company) of the Act of 1851 in its application to the harbour shall cease to apply to the Board and the expression " the Company " in the said section shall mean the Company as defined in this Order.

4. All costs, charges and expenses of and incidental to the preparing Costs of for, obtaining and confirming of this Order, or otherwise in relation Order. thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

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*British Transport Docks  
Order Confirmation Act 1970*

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